UNITED NATIONS

RESOLUTIONS

adopted by the General Assembly

during its

SIXTH SESSION

6 November 1951 - 5 February 1952



GENERAL ASSEMBLY

OFFICIAL RECORDS: SIXTH SESSION
SUPPLEMENT No. 20 (A/2119)

New York

504 (VI). Measures to combat the threat of a new world war and to strengthen peace and friendship among the nations

The General Assembly,

Recalling its resolution 502 (VI) adopted at its 358th plenary meeting on 11 January 1952, which established a Disarmament Commission and authorized it to consider all proposals designed to achieve the regulation, limitation and balanced reduction of all armed forces and all armaments, including effective international control of atomic energy to ensure the prohibition of atomic weapons,

1. *Decides* to refer to the Disarmament Commission the proposals contained in paragraphs 3 to 7 inclusive of document A/C.1/668,[4] together with any other proposals which may be made during the present session of the General Assembly on matters falling within the terms of reference of the Disarmament Commission;

2. *Decides* also to transmit to the Disarmament Commission for its information the records of the meetings of the First Committee at which this item was discussed.[5]

363rd plenary meeting,
19 January 1952.

505 (VI). Threats to the political independence and territorial integrity of China and to the peace of the Far East, resulting from Soviet violations of the Sino-Soviet Treaty of Friendship and Alliance of 14 August 1945 and from Soviet violations of the Charter of the United Nations

The General Assembly,

Considering that it is a prime objective of the United Nations "to establish conditions under which justice and respect for the obligations arising from treaties and other sources of international law can be maintained",

Noting that the Republic of China and the Union of Soviet Socialist Republics concluded on 14 August 1945 a Treaty[6] of Friendship and Alliance which provides, *inter alia,*

(*a*) That the Contracting Parties "agree . . . to act in accordance with the principles of mutual respect for each other's sovereignty and territorial integrity and non-intervention in each other's internal affairs", and

(*b*) That "the Soviet Government agrees to render China moral support and assist her with military supplies and other material resources, it being understood that this support and assistance will go exclusively to the National Government as the Central Government of China",

Finding that the Union of Soviet Socialist Republics obstructed the efforts of the National Government of China in re-establishing Chinese national authority in the three Eastern Provinces (Manchuria) after the surrender of Japan and gave military and economic aid to the Chinese Communists against the National Government of China,

Determines that the Union of Soviet Socialist Republics, in its relations with China since the surrender of Japan, has failed to carry out the Treaty of Friendship and Alliance between China and the Union of Soviet Socialist Republics of 14 August 1945.

369th plenary meeting,
1 February 1952.

506 (VI). Admission of new Members, including the right of candidate States to present proof of the conditions required under Article 4 of the Charter

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The General Assembly,

Considering that the Charter of the United Nations provides that membership is open to all States not original Members of the Organization and that this universality is subject only to the conditions that they be peace-loving and accept the obligations contained in the Charter and, in the judgment of the Organization, are able and willing to carry out these obligations,

Considering that the judgment of the Organization that they are willing and able to carry out these obligations and are otherwise qualified for membership ought to be based on facts such as: the maintenance of friendly relations with other States, the fulfilment of international obligations and the record of a State's willingness and present disposition to submit international claims or controversies to pacific means of settlement established by international law,

Considering that, according to the advisory opinion[7] of the International Court of Justice of 28 May 1948, a Member of the United Nations voting on the application of a State for membership in the United Nations is not juridically entitled to make its consent to admission dependent on conditions not expressly provided by paragraph 1 of Article 4 of the Charter; and that this opinion excludes the possibility that, consistently with the letter and spirit of the Charter, Members can base their votes on motives which are outside the scope of Article 4 of the Charter,

Considering that, not only for these reasons but also according to principles of international justice, it is not possible to deny to States candidates for membership in the United Nations the right to present proofs on facts such as those recited in the first paragraph of the preamble,

Recalling and reaffirming General Assembly resolutions 197 B (III) of 8 December 1948 and 296 K (IV) of 22 November 1949,

1. *Declares* that the judgment of the United Nations on the admission of new Members ought to be based exclusively on the conditions contained in Article 4 of the Charter;

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[4] *Ibid., Sixth Session, Annexes,* agenda item 67.

[5] *Ibid., Sixth Session, First Committee,* 487th-493rd meetings.

[6] See *Treaty Series, Treaties and international agreements registered or filed and recorded with the Secretariat of the United Nations,* Volume 10, 1947, No. 68, page 300.

[7] See *Admission of a State to the United Nations (Charter, Article 4), Advisory Opinion,* I.C.J. Reports, 1948, page 57.